

Syllabus

(e) Virginia Uranium and the United States also fail to show that the mining ban creates an “unacceptable ‘obstacle to the accomplishment and execution of the full purposes and objectives of Congress.’” *Wyeth v. Levine*, 555 U. S. 555, 563–564. Pp. 791–793.

GORSUCH, J., announced the judgment of the Court and delivered an opinion, in which THOMAS and KAVANAUGH, JJ., joined. GINSBURG, J., filed an opinion concurring in the judgment, in which SOTOMAYOR and KAGAN, JJ., joined, *post*, p. 780. ROBERTS, C. J., filed a dissenting opinion, in which BREYER and ALITO, JJ., joined, *post*, p. 793.

Charles J. Cooper argued the cause for petitioners. With him on the briefs were *Michael W. Kirk* and *John D. Ohlendorf*.

Solicitor General Francisco argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Acting Assistant Attorney General Wood*, *Deputy Solicitor General Stewart*, *Ann O’Connell*, *Varu Chilakamarri*, and *Charles E. Mullens*.

Toby J. Heytens, Solicitor General of Virginia, argued the cause for respondents. With him on the brief were *Mark R. Herring*, Attorney General, *Stephen A. Cobb*, Deputy Attorney General, *Paul Kugelman*, Senior Assistant Attorney General, *Matthew R. McGuire*, Principal Deputy Solicitor General, and *Michelle S. Kallen*, Deputy Solicitor General Designate.*

*Briefs of *amici curiae* urging reversal were filed for the Chamber of Commerce of the United States of America by *Erin E. Murphy*; for Entergy Operations, Inc., et al. by *Kathleen M. Sullivan*, *Sanford I. Weisburst*, *Ellyde R. Thompson*, *William B. Glew, Jr.*, and *Timothy A. Ngau*; for Former Nuclear Regulators by *Jay E. Silberg* and *Cynthia Cook Robertson*; for the Nuclear Energy Institute by *Peter C. Meier*, *Stephen B. Kinnaird*, *Sean D. Unger*, and *Ellen C. Ginsberg*; and for Sen. Tom Cotton et al. by *Gordon D. Todd*.

Briefs of *amici curiae* urging affirmance were filed for the State of Indiana et al. by *Curtis T. Hill, Jr.*, Attorney General of Indiana, *Thomas M. Fisher*, Solicitor General, and *Kian J. Hudson* and *Julia C. Payne*, Deputy Attorneys General, by *Robert W. Ferguson*, Attorney General of Washing-

Opinion of GORSUCH, J.

JUSTICE GORSUCH announced the judgment of the Court and delivered an opinion, in which JUSTICE THOMAS and JUSTICE KAVANAUGH join.

Virginia Uranium insists that the federal Atomic Energy Act of 1954 (AEA) preempts a state law banning uranium mining, but we do not see it. True, the AEA gives the Nuclear Regulatory Commission (NRC) significant authority over the milling, transfer, use, and disposal of uranium, as well as the construction and operation of nuclear power plants. But Congress conspicuously chose to leave untouched the States' historic authority over the regulation of mining activities on private lands within their borders. Nor do we see anything to suggest that the enforcement of Virginia's law would frustrate the AEA's purposes and objectives. And we are hardly free to extend a federal statute to a sphere Congress was well aware of but chose to leave alone. In this, as in any field of statutory interpretation, it is our duty to respect not only what Congress wrote but, as importantly, what it didn't write.

I

Virginia Uranium thought its plan was pretty straightforward. First, the company wanted to use conventional mining techniques to extract raw uranium ore from a site

ton, *Noah G. Purcell*, Solicitor General, and *Koalani Kaulukukui-Barbee*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Russell A. Suzuki* of Hawaii, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Gurbir S. Grewal* of New Jersey, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Kilmartin* of Rhode Island, and *Ken Paxton* of Texas; for the Members of the Southern Virginia Delegation to the Virginia General Assembly et al. by *Cale Jaffe* and *Anthony F. Troy*; for the National Conference of State Legislators et al. by *John J. Korzen* and *Lisa Soronen*; for Preemption Law Professors by *Derek T. Ho*; and for the Roanoke River Basin Association et al. by *Sean H. Donohue*, *David T. Goldberg*, and *Matthew Littleton*.

Opinion of GORSUCH, J.

near Coles Hill, Virginia. Next, it intended to mill that ore into a usable form. Typically performed at the mine site, milling involves grinding the ore into sand-sized grains and then exposing it to a chemical solution that leaches out pure uranium. Once dried, the resulting mixture forms a solid “yellowcake,” which the company planned to sell to enrichment facilities that produce fuel for nuclear reactors. Finally, because the leaching process does not remove all of the uranium from the ore, the company expected to store the leftover “tailings” near the mine to reduce the chances of contaminating the air or water.

But putting the plan into action didn’t prove so simple. Pursuant to the AEA, ch. 724, 60 Stat. 755, 42 U. S. C. § 2011 *et seq.*, the NRC regulates milling and tailing storage activities nationwide, and it has issued an array of rules on these subjects. See, *e.g.*, 10 CFR § 40 *et seq.* (2018). None of those, though, proved the real problem for Virginia Uranium. The company hit a roadblock even before it could get to the point where the NRC’s rules kick in: State law flatly prohibits uranium mining in Virginia. See Va. Code Ann. §§ 45.1–161.292:30, 45.1–283 (2013); 848 F. 3d 590, 593–594 (CA4 2017).

To overcome that obstacle, Virginia Uranium filed this lawsuit. The company alleged that, under the Constitution’s Supremacy Clause, the AEA preempts state uranium mining laws like Virginia’s and ensconces the NRC as the lone regulator in the field. And because the NRC’s regulations say nothing about uranium mining, the company continued, it remains free to mine as it will in Virginia or elsewhere.

Both the district court and a divided panel of the Fourth Circuit rejected the company’s argument. The courts acknowledged that the AEA affords the NRC considerable authority over the nuclear fuel life cycle. But both courts found missing from the AEA any hint that Congress sought to strip States of their traditional power to regulate mining on private lands within their borders. Given the signifi-

Opinion of GORSUCH, J.

cance of the question presented, we granted review. 584 U. S. 922 (2018).

II

The Supremacy Clause supplies a rule of priority. It provides that the “Constitution, and the Laws of the United States which shall be made in Pursuance thereof,” are “the supreme Law of the Land . . . any Thing in the Constitution or Laws of any state to the Contrary notwithstanding.” Art. VI, cl. 2. This Court has sometimes used different labels to describe the different ways in which federal statutes may displace state laws—speaking, for example, of express, field, and conflict preemption. But these categories “are not rigidly distinct.” *Crosby v. National Foreign Trade Council*, 530 U. S. 363, 372, n. 6 (2000) (internal quotation marks omitted). And at least one feature unites them: Invoking some brooding federal interest or appealing to a judicial policy preference should never be enough to win preemption of a state law; a litigant must point specifically to “a constitutional text or a federal statute” that does the displacing or conflicts with state law. *Puerto Rico Dept. of Consumer Affairs v. ISLA Petroleum Corp.*, 485 U. S. 495, 503 (1988); see also 3 J. Story, *Commentaries on the Constitution of the United States* §1831, p. 694 (1st ed. 1833) (“the supremacy of the laws is attached to those only, which are made in pursuance of the constitution”).

Before us, Virginia Uranium contends that the AEA (and only the AEA) unseats state uranium mining regulations and that it does so under the doctrines of both field and conflict preemption. We examine these arguments about the AEA’s preemptive effect much as we would any other about statutory meaning, looking to the text and context of the law in question and guided by the traditional tools of statutory interpretation. Here, no more than in any statutory interpretation dispute, is it enough for any party or court to rest on a supposition (or wish) that “it must be in there somewhere.”

Opinion of GORSUCH, J.

A

We begin with the company's claim that the text and structure of the AEA reserve the regulation of uranium mining for the purpose of addressing nuclear safety concerns to the NRC alone—and almost immediately problems emerge. Unlike many federal statutes,¹ the AEA contains no provision preempting state law in so many words. Even more pointedly, the statute grants the NRC extensive and sometimes exclusive authority to regulate nearly every aspect of the nuclear fuel life cycle *except* mining. Companies like Virginia Uranium must abide the NRC's rules and regulations if they wish to handle enriched uranium, to mill uranium ore or store tailings, or to build or run a nuclear power plant. See 42 U. S. C. §§2111(a), 2113(a), 2073. But when it comes to mining, the statute speaks very differently, expressly stating that the NRC's regulatory powers arise only “*after* [uranium's] removal from its place of deposit in nature.” §2092 (emphasis added). As the government itself has conceded, this means that “uranium mining” lies “outside the NRC's jurisdiction,” Brief for United States as *Amicus Curiae* 14, and the agency's grip takes hold only “at the mill, rather than at the mine,” *In re Hydro Resources, Inc.*, 63 N. R. C. 510, 512 (2006).

What the text states, context confirms. After announcing a general rule that mining regulation lies outside the NRC's jurisdiction, the AEA carves out a notably narrow exception. On *federal* lands, the statute says, the NRC may regulate uranium mining. §2097. And if the federal government wants to control mining of uranium on *private* land, the AEA tells the NRC exactly what to do: It may purchase or seize the land by eminent domain and *make* it federal land. §2096. Congress thus has spoken directly to the question

¹ See, e. g., *Chamber of Commerce of United States of America v. Whiting*, 563 U. S. 582, 594–595 (2011); *Geier v. American Honda Motor Co.*, 529 U. S. 861, 867 (2000).

Opinion of GORSUCH, J.

of uranium mining on private land, and every bit of what it's said indicates that state authority remains untouched.

Later amendments to the AEA point to the same conclusion. Some years after the statute's passage, Congress added a provision, currently codified in §2021, allowing the NRC to devolve certain of its regulatory powers to the States. Unsurprisingly, Congress indicated that the NRC must maintain regulatory control over especially sensitive activities like the construction of nuclear power plants. §2021(c). But under §2021(b) the NRC may now, by agreement, pass to the States some of its preexisting authorities to regulate various nuclear materials “for the protection of the public health and safety from radiation hazards.” Out of apparent concern that courts might (mis)read these new provisions as prohibiting States from regulating any activity even tangentially related to nuclear power without first reaching an agreement with the NRC, Congress added subsection (k):

“Nothing in this section [that is, §2021] shall be construed to affect the authority of any State or local agency to regulate activities for purposes other than protection against radiation hazards.”

Section 2021, thus, did nothing to extend the NRC's power to activities, like mining, historically beyond its reach. Instead, it served only to allow the NRC to share with the States some of the powers previously reserved to the federal government. Even then, the statute explained in subsection (k) that States remain free to regulate the activities discussed in §2021 for purposes *other than* nuclear safety without the NRC's consent. Indeed, if anything, subsection (k) might be described as a *non-preemption* clause.

Virginia Uranium's case hinges on a very different construction of subsection (k). The company suggests that, properly read, the provision greatly expands the preemptive effect of the AEA and demands the displacement of *any*

Opinion of GORSUCH, J.

state law (touching on mining or any other subject) if that law was enacted for the purpose of protecting the public against “radiation hazards.” And, the company adds, Virginia’s law bears just such an impermissible purpose.

In our view, this reading nearly turns the provision on its head. Subsection (k) does not displace traditional state regulation over mining or otherwise extend the NRC’s grasp to matters previously beyond its control. It does not expose every state law on every subject to a searching judicial inquiry into its latent purposes. Instead and much more modestly, it clarifies that “nothing in this [new] section [2021]”—a section allowing for the devolution-by-agreement of federal regulatory authority—should be construed to curtail the States’ ability to regulate the activities discussed in that *same section* for purposes other than protecting against radiation hazards. So only state laws that seek to regulate the activities discussed in § 2021 without an NRC agreement—activities like the construction of nuclear power plants—may be scrutinized to ensure their purposes aim at something other than regulating nuclear safety. Really, to accomplish all it wants, Virginia Uranium would have to persuade us to read 13 words out of the statute and add 2 more:

~~Nothing in this section shall be construed to affect the authority of any State or local agency to~~ **may** regulate activities **only** for purposes other than protection against radiation hazards.

That may be a statute some would prefer, but it is not the statute we have.

Just consider what would follow from Virginia Uranium’s interpretation. Not only would States be prohibited from regulating uranium mining to protect against radiation hazards; the federal government likely would be barred from doing so as well. After all, the NRC has long believed, and still maintains, that the AEA affords it no authority to regulate uranium mining on private land. Nor does Virginia

Opinion of GORSUCH, J.

Uranium dispute the federal government’s understanding. Admittedly, if Virginia Uranium were to prevail here, the NRC might respond by changing course and seeking to regulate uranium mining for the first time. But given the statute’s terms, the prospects that it might do so successfully in the face of a legal challenge appear gloomy. Admittedly, as well, federal air and water and other regulations might apply at a uranium mine much as at any other workplace. But the possibility that both state and federal authorities would be left unable to regulate the unique risks posed by an activity as potentially hazardous as uranium mining seems more than a little unlikely, and quite a lot to find buried deep in subsection (k). Talk about squeezing elephants into mouseholes. See *Whitman v. American Trucking Assns., Inc.*, 531 U.S. 457, 468 (2001).

B

If the best reading of the AEA doesn’t require us to hold the state law before us preempted, Virginia Uranium takes another swing in the same direction. Only this time, the company submits, our precedents have adopted a different, even if maybe doubtful, reading of the AEA that we must follow. Most prominently, Virginia Uranium points to this Court’s decision in *Pacific Gas & Elec. Co. v. State Energy Resources Conservation and Development Comm’n*, 461 U.S. 190 (1983).

But here, too, problems quickly appear. *Pacific Gas rejected* a preemption challenge to a state law prohibiting the construction of new nuclear power plants. Along the way, the Court expressly dismissed the notion that §2021 establishes the federal government as “the sole regulator of all matters nuclear.” *Id.*, at 205. The Court observed that subsection (k) addresses itself only to “the pre-emptive effect of ‘this section,’ that is [§2021].” *Id.*, at 210. And the Court acknowledged that subsection (k) does not “cut back on pre-existing state authority outside the NRC’s jurisdic-

Opinion of GORSUCH, J.

tion,” a field that surely includes uranium mining. *Id.*, at 209–210. None of this remotely helps Virginia Uranium’s cause.

Still, Virginia Uranium seeks to make the best of a bad situation. The company points out that *Pacific Gas* upheld the state law at issue there only after observing that it was enacted out of concern with economic development, not for the purpose of addressing radiation safety hazards. *Id.*, at 205. From this, the company reasons, we should infer that *any* state law enacted with the purpose of addressing nuclear hazards must fall thanks to our precedent.

But even that much does not follow. Since the passage of the AEA, the NRC has always played a significant role in regulating the construction of nuclear power plants. Indeed, under §2021(c) this remains one area where the NRC generally cannot devolve its responsibilities to the States. See *id.*, at 197–198, 206–207. And because §2021 classifies the construction of nuclear power plants as one of the core remaining areas of special federal concern, any state law regulating that activity risks being subjected to an inquiry into its purposes under subsection (k). But the activity Virginia’s law regulates—mining on private land—isn’t one the AEA has ever addressed, and it isn’t one §2021 discusses, so subsection (k) does not authorize any judicial inquiry into state legislative purpose in this case.

Admittedly, there is a wrinkle here. *Pacific Gas* seemed to accept California’s argument that its law addressed *whether* new power plants may be built, while the NRC’s regulatory power under §2021(c) extends only to the question *how* such plants are constructed and operated. *Id.*, at 212. And accepting (without granting) these premises, it would appear that California’s law did *not* implicate an activity addressed by §2021, so an inquiry into state legislative purpose under subsection (k) was not statutorily authorized. Yet *Pacific Gas* inquired anyway, perhaps on the unstated belief that the state law just came “too close” to a core power §2021(c) reserves to the federal government. Does that

Opinion of GORSUCH, J.

mean we must do the same? Certainly Virginia Uranium sees it that way.

We do not. Just because *Pacific Gas* may have made more of state legislative purposes than the terms of the AEA allow does not mean we must make more of them yet. It is one thing to do as *Pacific Gas* did and inquire exactly into state legislative purposes when state law prohibits a regulated activity like the construction of a nuclear plant, and thus comes close to trenching on core federal powers reserved to the federal government by the AEA. It is another thing to do as Virginia Uranium wishes and impose the same exacting scrutiny on state laws prohibiting an activity like mining far removed from the NRC's historic powers. And without some clearer congressional mandate suggesting an inquiry like that would be appropriate, we decline to undertake it on our own authority. The preemption of state laws represents "a serious intrusion into state sovereignty." *Medtronic, Inc. v. Lohr*, 518 U.S. 470, 488 (1996) (plurality opinion). And to order preemption based not on the strength of a clear congressional command, or even on the strength of a judicial gloss requiring that much of us, but based only on a doubtful *extension* of a questionable judicial gloss would represent not only a significant federal intrusion into state sovereignty. It would also represent a significant judicial intrusion into Congress's authority to delimit the preemptive effect of its laws. Being in for a dime doesn't mean we have to be in for a dollar.

This Court's later cases confirm the propriety of restraint in this area. In a decision issued just a year after *Pacific Gas* (and by the same author), this Court considered whether the AEA preempted state tort remedies for radiation injuries after a nuclear plant accident. *Silkwood v. Kerr-McGee Corp.*, 464 U.S. 238 (1984). In doing so, the Court did not inquire into state legislative purposes, apparently because it thought state tort law (unlike a law prohibiting the construction of a nuclear power plant) fell beyond any fair under-

Opinion of GORSUCH, J.

standing of the NRC's reach under the AEA. *Id.*, at 251. Exactly the same, as we have seen, can be said of Virginia's mining law. In fact, if the *Silkwood* Court *had* inquired into state legislative purposes, the law there might well have been harder to sustain than the one now before us. State tort laws, after all, plainly intend to regulate public safety. And as applied in *Silkwood*, state tort law sought to regulate the safety of a nuclear plant's operations, an area of special federal interest under § 2021(c). *Id.*, at 256. Nothing comparable, of course, can be said of the mining regulations before us. Some years later, this Court in *English v. General Elec. Co.*, 496 U. S. 72 (1990), went further still, casting doubt on whether an inquiry into state legislative purposes had been either necessary or appropriate in *Pacific Gas* itself. 496 U. S., at 84–85, n. 7 (“Whether the *suggestion* of the majority in *Pacific Gas* that legislative purpose is relevant to the definition of the pre-empted field is part of the *holding* of that case is not an issue before us today” (emphasis added)).

If *Pacific Gas* and its progeny alone marked our path, this case might be a close one, as our dissenting colleagues suggest. *Post*, at 795–797 (opinion of ROBERTS, C. J.). But for us any lingering doubt dissipates when we consult other cases in this area and this Court's traditional tools of statutory interpretation.²

Start with the fact that this Court has generally treated field preemption inquiries like this one as depending on *what* the State did, not *why* it did it. Indeed, this Court has analyzed most every other modern field preemption doctrine dispute in this way—from immigration, *Arizona v. United States*, 567 U. S. 387 (2012), to arbitration, *AT&T Mobility LLC v. Concepcion*, 563 U. S. 333 (2011), to foreign affairs, *Crosby*, 530 U. S. 363, to railroads, *Kurns v. Railroad Friction Products*

² Far from “sweep[ing] well beyond the confines of this case,” as our concurring colleagues suggest, see *post*, at 781 (GINSBURG, J., concurring in judgment), these considerations are, to us, essential to its resolution.

Opinion of GORSUCH, J.

Corp., 565 U. S. 625 (2012), to energy, *Hughes v. Talen Energy Marketing, LLC*, 578 U. S. 150 (2016), to civil procedure, *Shady Grove Orthopedic Associates, P. A. v. Allstate Ins. Co.*, 559 U. S. 393 (2010). It is unclear why we would proceed differently here without some clear congressional instruction requiring it.³

Our field preemption cases proceed as they do, moreover, for good reasons. Consider just some of the costs to cooperative federalism and individual liberty we would invite by inquiring into state legislative purpose too precipitately. The natural tendency of regular federal judicial inquiries into state legislative intentions would be to stifle deliberation in state legislatures and encourage resort to secrecy and subterfuge. That would inhibit the sort of open and vigorous legislative debate that our Constitution recognizes as vital to testing ideas and improving laws. In *Virginia Uranium*’s vision as well, federal courts would have to allow depositions of state legislators and governors, and perhaps hale them into court for cross-examination at trial about their subjective motivations in passing a mining statute. And at the end of it all, federal courts would risk subjecting similarly situated persons to radically different legal rules as judges uphold and strike down materially identical state regulations based only on the happenstance of judicial as-

³ Certainly the dissent’s case, *National Meat Assn. v. Harris*, 565 U. S. 452 (2012), doesn’t command a different result. There, the Court merely enforced an express statutory preemption clause that prohibited States from setting standards for handling nonambulatory pigs that differed from federal standards. As we’ve seen, the AEA contains no comparable preemption clause forbidding Virginia to regulate mining in any way. Admittedly, *National Meat* went on to say that a State could not enforce a preempted animal-handling standard indirectly by banning the sale of meat from nonambulatory pigs if its law “function[ed] as a command to slaughterhouses to structure their operations in the exact way” state regulators desired rather than as federal standards required. *Id.*, at 464. But here, by contrast, no one suggests that Virginia’s mining law requires anyone to disregard NRC regulations.

Opinion of GORSUCH, J.

sessments of the “true” intentions lurking behind them. In light of all this, it can surprise no one that our precedents have long warned against undertaking potential misadventures into hidden state legislative intentions without a clear statutory mandate for the project. See, *e. g.*, *Shady Grove*, 559 U. S., at 404–405; *Rowe v. New Hampshire Motor Transp. Assn.*, 552 U. S. 364, 373–374 (2008); *Palmer v. Thompson*, 403 U. S. 217, 225 (1971); *Arizona v. California*, 283 U. S. 423, 455, n. 7 (1931) (collecting cases).

To be sure, Virginia Uranium insists that we don’t need to worry about concerns like these in this case. We don’t, the company says, because Virginia has admitted that it enacted its law with the (impermissible) purpose of protecting the public from nuclear safety hazards. But the Commonwealth denies making any such admission. Instead, it says it has merely accepted as true the allegations in the company’s complaint about the intentions animating state law for purposes of the Commonwealth’s own motion to dismiss this suit under Federal Rule of Civil Procedure 12(b)(6). If the case were to proceed beyond the pleadings stage, Virginia insists, a more searching judicial inquiry into the law’s motivation would be inevitable. Whoever may be right about the status of Virginia’s admissions in this case, though, the point remains that following Virginia Uranium’s lead would require serious intrusions into state legislative processes in future cases.

Beyond these concerns, as well, lie well-known conceptual and practical ones this Court has also advised against inviting unnecessarily. State legislatures are composed of individuals who often pursue legislation for multiple and unexpressed purposes, so what legal rules should determine when and how to ascribe a particular intention to a particular legislator? What if an impermissible intention existed but wasn’t necessary to her vote? And what percentage of the legislature must harbor the impermissible intention before we can impute it to the collective institution? Putting all

Opinion of GORSUCH, J.

that aside, how are courts supposed to conduct a reasonable inquiry into these questions when recorded state legislative history materials are often not as readily available or complete as their federal counterparts? And if trying to peer inside legislators' skulls is too fraught an enterprise, shouldn't we limit ourselves to trying to glean legislative purposes from the statutory text where we began? Even *Pacific Gas* warned future courts against too hastily accepting a litigant's invitation to "become embroiled in attempting to ascertain" state legislative "motive[s]," acknowledging that such inquiries "often" prove "unsatisfactory venture[s]". What motivates one legislator to vote for a statute is not necessarily what motivates scores of others to enact it." 461 U. S., at 216 (citation omitted). See also *Shady Grove*, 559 U. S., at 403–404, n. 6; *Palmer*, 403 U. S., at 225; *Edwards v. Aguillard*, 482 U. S. 578, 636–639 (1987) (Scalia, J., dissenting). Cf. *Oncale v. Sundowner Offshore Services, Inc.*, 523 U. S. 75, 79 (1998). We think these warnings wise, and we heed them today.

C

If the AEA doesn't occupy the field of radiation safety in uranium mining, Virginia Uranium suggests the statute still displaces state law through what's sometimes called conflict preemption. In particular, the company suggests, Virginia's mining law stands as an impermissible "obstacle to the accomplishment and execution of the full purposes and objectives of Congress." *Hines v. Davidowitz*, 312 U. S. 52, 67 (1941). On Virginia Uranium's account, Congress sought to capture the benefits of developing nuclear power while mitigating its safety and environmental costs. And, the company contends, Virginia's moratorium disrupts the delicate "balance" Congress sought to achieve between these benefits and costs. Maybe the text of the AEA doesn't touch on mining in so many words, but its authority to regulate later stages of the nuclear fuel life cycle would be effectively undermined if mining laws like Virginia's were allowed.

Opinion of GORSUCH, J.

A sound preemption analysis cannot be as simplistic as that. No more than in field preemption can the Supremacy Clause be deployed here to elevate abstract and unenacted legislative desires above state law; only federal laws “made in pursuance of” the Constitution, through its prescribed processes of bicameralism and presentment, are entitled to preemptive effect. Art. VI, cl. 2; *ISLA Petroleum*, 485 U. S., at 503. So any “[e]vidence of pre-emptive purpose,” whether express or implied, must therefore be “sought in the text and structure of the statute at issue.” *CSX Transp., Inc. v. Easterwood*, 507 U. S. 658, 664 (1993).

Sound and well-documented reasons underlie this rule too. Efforts to ascribe unenacted purposes and objectives to a federal statute face many of the same challenges as inquiries into state legislative intent. Trying to discern what motivates legislators individually and collectively invites speculation and risks overlooking the reality that individual Members of Congress often pursue multiple and competing purposes, many of which are compromised to secure a law’s passage and few of which are fully realized in the final product. Hefty inferences may be required, as well, when trying to estimate whether Congress would have wanted to prohibit States from pursuing regulations that may happen to touch, in various degrees and different ways, on unenacted federal purposes and objectives. Worse yet, in piling inference upon inference about hidden legislative wishes we risk displacing the legislative compromises actually reflected in the statutory text—compromises that sometimes may seem irrational to an outsider coming to the statute cold, but whose genius lies in having won the broad support our Constitution demands of any new law. In disregarding these legislative compromises, we may only wind up displacing perfectly legitimate state laws on the strength of “purposes” that only we can see, that may seem perfectly logical to us, but that lack the democratic provenance the Constitution demands before a federal law may be declared supreme. See, *e. g.*,

Opinion of GORSUCH, J.

Pacific Gas, 461 U. S., at 222 (acknowledging that under the AEA “the promotion of nuclear power is not to be accomplished ‘at all costs’”); *Cyan, Inc. v. Beaver County Employees Retirement Fund*, 583 U. S. 416, 433–434 (2018); *Aguillard*, 482 U. S., at 636–639 (Scalia, J., dissenting); *United States v. O’Brien*, 391 U. S. 367, 382–384 (1968); *Fletcher v. Peck*, 6 Cranch 87, 130 (1810).

So it may be that Congress meant the AEA to promote the development of nuclear power. It may be that Congress meant the AEA to balance that goal against various safety concerns. But it also may be that Members of Congress held many other disparate or conflicting goals in mind when they voted to enact and amend the AEA, and many different views on exactly how to manage the competing costs and benefits. If polled, they might have reached very different assessments, as well, about the consistency of Virginia’s law with their own purposes and objectives. The only thing a court can be sure of is what can be found in the law itself. And every indication in the law before us suggests that Congress elected to leave mining regulation on private land to the States and grant the NRC regulatory authority only *after* uranium is removed from the earth. That compromise may not be the only permissible or even the most rationally attractive one, but it is surely both permissible and rational to think that Congress might have chosen to regulate the more novel aspects of nuclear power while leaving to States their traditional function of regulating mining activities on private lands within their boundaries.⁴

⁴The concurrence takes a slightly different tack. It seems to accept the premise that the Court can divine the unenacted “purposes” and “objectives” underlying the AEA and weigh them against Virginia’s mining law. But in rejecting Virginia Uranium’s argument, it winds up emphasizing repeatedly that the *text* of the AEA does not address mining. See *post*, at 791–793. That may not fully address Virginia Uranium’s assertion that state mining regulations interfere with a latent statutory purpose lying *beyond* the text, but it does highlight the propriety of confining our inquiries to the statute’s terms.

GINSBURG, J., concurring in judgment

As an alternative to proceeding down the purposes-and-objectives branch of conflict preemption, Virginia Uranium might have pursued another. Our cases have held that we can sometimes infer a congressional intent to displace a state law that makes compliance with a federal statute impossible. *English*, 496 U. S., at 79. But Virginia Uranium hasn't pursued an argument along any of these lines, and understandably so. Not only *can* Virginia Uranium comply with both state and federal laws; it is also unclear whether laws like Virginia's might have a meaningful impact on the development of nuclear power in this country. Some estimate that the United States currently imports over 90 percent of the uranium used in this country. 848 F. 3d, at 599. Domestic uranium mines currently exist on federal lands as well and are thus beyond the reach of state authorities. *Ibid.* And if the federal government concludes that development of the Coles Hill deposit or any other like it is crucial, it may always purchase the site (or seize it through eminent domain) under the powers Congress has supplied. 42 U. S. C. §2096. All this may be done without even amending the AEA, itself another course which Congress is always free to pursue—but which this Court should never be tempted into pursuing on its own.

* * *

The judgment of the court of appeals is

Affirmed.

JUSTICE GINSBURG, with whom JUSTICE SOTOMAYOR and JUSTICE KAGAN join, concurring in the judgment.

Soon after discovery of a large deposit of uranium ore in Virginia in the late 1970s, the Commonwealth banned uranium mining. Petitioners (collectively, Virginia Uranium) now seek to mine that deposit. They challenge the Commonwealth's uranium mining ban as preempted by the Atomic Energy Act (AEA or Act), 42 U. S. C. §2011 *et seq.*,

GINSBURG, J., concurring in judgment

either because the ban intrudes on the federally occupied field of nuclear safety, or because it obstructs realization of federal purposes and objectives.

I reach the same bottom-line judgment as does JUSTICE GORSUCH: The Commonwealth’s mining ban is not preempted. And I agree with much contained in JUSTICE GORSUCH’s opinion. See *ante*, at 768–774. But his discussion of the perils of inquiring into legislative motive, see *ante*, at 774–777, sweeps well beyond the confines of this case, and therefore seems to me inappropriate in an opinion speaking for the Court, rather than for individual members of the Court. Further, Virginia Uranium’s obstacle preemption arguments fail under existing doctrine, so there is little reason to question, as JUSTICE GORSUCH does, see *ante*, at 777–779, whether that doctrine should be retained. For these reasons, I join the Court’s judgment, and separately state how I would resolve the instant controversy.

I

A

The production of nuclear fuel begins with mining uranium, a radioactive metal. See *ante*, at 765–766; Brief for Former Nuclear Regulators as *Amici Curiae* 7. Conventionally, uranium ore is mined and then “milled”—crushed and treated with chemicals that extract the usable uranium. *Ibid.* The resulting concentrated uranium oxide, known as yellowcake, is shipped elsewhere for conversion, enrichment, and fabrication into fuel. *Ibid.* Producing just a pound of usable uranium requires milling hundreds or even thousands of pounds of ore. H. R. Rep. No. 95–1480, pt. 1, p. 11 (1978). Milling thus generates vast quantities of “tailings”: Sandy waste that is radioactive, contains toxic heavy metals, *ibid.*, and must “be carefully regulated, monitored, and controlled,” U. S. NRC, Conventional Uranium Mills (rev. May 15, 2017), <https://www.nrc.gov/materials/uranium-recovery/extraction-methods/conventional-mills.html> (as last visited

GINSBURG, J., concurring in judgment

June 12, 2019). Milling and tailings storage typically occur within 30 miles of the place where uranium is mined. *Ibid.*

The Federal Government regulates much of this process, primarily to protect public health and safety from radiation, but also for national security reasons. *English v. General Elec. Co.*, 496 U. S. 72, 81–82 (1990); *Pacific Gas & Elec. Co. v. State Energy Resources Conservation and Development Comm’n*, 461 U. S. 190, 207, 211–212 (1983) (*PG&E*). Under the AEA, a federal license is required to, *inter alia*, “transfer or receive in interstate commerce” nontrivial quantities of “source material,” including uranium ore, “after removal from its place of deposit in nature,” §§ 2092, 2014(z). See also §§ 2091–2099. Licensing requirements also apply to the production, possession, or disposal of “byproduct material,” including tailings. See §§ 2014(e), 2111–2114. Federal regulations govern, as well, subsequent processes, including uranium enrichment and nuclear power generation. See, *e. g.*, §§ 2131–2142.

The Federal Government does not regulate conventional uranium mining on private land, having long taken the position that its authority begins “at the mill, rather than at the mine.” *In re Hydro Resources, Inc.*, 63 N. R. C. 510, 512 (2006); Brief for United States as *Amicus Curiae* 4. See also *ante*, at 768–769. And while the Federal Government has exclusive authority over the radiation hazards of milling and subsequent stages of the nuclear fuel cycle, States may regulate these activities for other purposes. See § 2018 (AEA does not affect state authority over “the generation, sale, or transmission of electric power produced” by nuclear powerplants); *English*, 496 U. S., at 81–82; *PG&E*, 461 U. S., at 207, 211–212.

The AEA provides a means by which States may take over federal responsibility for regulating the nuclear safety aspects of milling and the disposal of tailings. See 42 U. S. C. § 2021. In 1959, Congress amended the AEA to “recognize the interests of the States in the peaceful uses of atomic en-

GINSBURG, J., concurring in judgment

ergy, and to clarify the respective responsibilities under th[e] Act of the States and [federal authorities] with respect to the regulation of byproduc[t and] source . . . materials.” Act of Sept. 23, 1959, 73 Stat. 688, as amended, 42 U.S.C. § 2021(a)(1). The Nuclear Regulatory Commission (NRC) and a State may agree for the former to devolve to the latter authority to regulate source or byproduct materials “for the protection of the public health and safety from radiation hazards.” § 2021(b). “During the duration of such an agreement . . . the State shall have authority to regulate the materials covered by the agreement for the protection of the public health and safety from radiation hazards.” *Ibid.* Section 2021(c) prohibits the NRC, however, from devolving its authority over “more dangerous activities—such as nuclear reactors.” S. Rep. No. 870, 86th Cong., 1st Sess., 8 (1959). Finally, and of critical importance to this case, § 2021(k) provides that “[n]othing in this section shall be construed to affect the authority of any State or local agency to regulate activities for purposes other than protection against radiation hazards.”

B

In the late 1970s, uranium ore was discovered under Coles Hill, an unincorporated community in Pittsylvania County, Virginia. App. to Pet. for Cert. 216a. Totalling 119 million pounds of uranium ore, the deposit is the Nation’s largest. *Id.*, at 201a. See also 848 F. 3d 590, 593 (CA4 2017) (case below). After a private company began leasing mineral rights to the deposit, the Virginia General Assembly directed the state Coal and Energy Commission to study the effects on the environment and public health of uranium exploration, mining, and milling. H. J. Res. No. 324, 1981 Va. Acts p. 1404; App. to Pet. for Cert. 216a.

The next year, the General Assembly authorized uranium exploration but imposed a one-year moratorium on uranium mining. 1982 Va. Acts ch. 269. The Assembly’s stated pur-